The Year the Label Changed

2026 food regulation, and what your team does next

A compliance briefing for food & beverage analysts

140+ bills. 42 states. One label.

Federal reform and a state patchwork are landing **at the same time**.

The job is no longer to predict.

It is to be ready.

You cannot forecast every outcome. You can be prepared for all of them.

Five forces are rewriting the label

1. **GRAS** — the self-affirmed loophole is closing
2. **Dyes** — synthetic colors phasing out
3. **UPF** — a definition is coming
4. **Front-of-package** — an interpretive nutrition box
5. **"Healthy" & claims** — food-group model, net impression

Force 1 — GRAS

The "loophole" is closing

FDA proposed rule to **end self-affirmed GRAS** (OIRA review since Dec 1).
Post-market reassessment of **BHA, BHT, ADA**.
States pile on: **NY S1239F** GRAS-disclosure database.

Force 2 — Dyes

Synthetic colors are on the way out

6 petroleum dyes: voluntary phase-out by **end of 2026**. Red No. 3 accelerated.
"No artificial color" claims now under **enforcement discretion**.
Natural swaps (beetroot, spirulina) bring **their own** label questions.

Force 3 — Ultra-processed foods

A definition is coming — just not agreed

FDA/USDA joint RFI closed Oct 2025: **5,000-19,000 comments**, no consensus.

No federal timeline. States are not waiting.

California is already drafting its own definition (AB 1264, AB 2244).

Force 4 — Front-of-package

An interpretive box on the front panel

FDA "Nutrition Info" box rates three nutrients **Low / Med / High**:
Saturated Fat • Sodium • Added Sugars
Final rule projected **spring 2026** · compliance **3-4 years**

Force 5 — "Healthy" & claims

Fortification no longer rescues a claim

New **food-group model** (effective Apr 2025, compliance **Feb 25, 2028**).

Gains the claim: avocados, nuts, salmon, olive oil.

Loses it: fortified white bread, sweetened cereal.

Why now? MAHA.

Reduce diet disease · cut additives & dyes · "real food" · radical transparency

> "Expect actions that emerge **outside** rulemaking and guidance."

Leadership is unstable — watch announcements, not just dockets.

California writes the national template

Law	What it does	Deadline
AB 418	Bans BVO, bromate, propylparaben, Red 3	Jan 1, 2027
AB 2316	6 school dyes out	Dec 31, 2027
AB 660	Standard date labels; kills "sell by"	Jul 1, 2026
AB 1264	UPF definition + school phase-out	2028 / 2035

The patchwork beyond California

Texas SB 25 — 44-ingredient warnings, Jan 2027 *(enjoined)*
New York S1239F — GRAS database + dye bans *(awaiting Governor)*
School-food laws enacted: **Iowa** • **Nebraska** • **Tennessee**

Litigation delays laws. It does not reverse the scrutiny.

How states get around federal law

Federal law (NLEA 403A) preempts most state label rules...

...but safety warnings are not preempted.

That single carve-out is the lane every state bill drives through.

Proposition 65 is its own engine

Food notices jumped **~360 → 1,200+ per year** and stayed high.

The **defendant** must prove exposure is below the safe harbor.
Many chemicals have **no** safe harbor. Fees-to-penalty ratio: **~20x**.

On claims: the dossier is the product

If it isn't documented, the claim isn't defensible.

Courts judge the **net impression** — words, images, color, icons.
No settled definition? **The plaintiffs' bar sets the standard.**

What this means for beverages

- **Added sugar** — the likeliest FOP "High" trigger
- **Sweeteners** — allulose, stevia, sucralose are next
- **Caffeine** — voluntary federal guidance + Canada thresholds
- **Color & preservative swaps** — route back through claim review

Make QA + Regulatory one motion

Regulatory: what must be **true on paper**.
QA: what must be true **every run**.

Trigger → Risk → Decision Rights → Controls & Proof → Prevent Recurrence

AI helps — on a real horizon

Moving from narrow models to **end-to-end decision execution**.

But meaningful, widespread impact is **5+ years** out (FAO).
Keep humans in the loop on high-liability calls.

From patchwork to playbook

Was: many trackers · reactive firefighting · "federal *or* state"

Now: one inventory · change-control gates · "both, at once"

The eight-step playbook

1. One **master** ingredient & claims inventory
2. Classify each ingredient's regulatory status
3. Map triggers by **function, not name**
4. Install a label-change **control gate**
5. Keep GRAS & post-market **dossiers audit-ready**
6. Segment: **Reformulate / Relabel / Restrict / Defend**
7. Update supplier **contracts & attestations**
8. Align legal, regulatory, science & comms on **one calendar**

Three things to start this quarter

1. Stand up the **one inventory** — mapped by function
2. Run the **California 2027 list** against your portfolio
3. Collapse FOP + "Healthy" into **one redesign window**

Ready beats right-on-time.

Questions & discussion

Full synthesis: `docs/reports/food-label-conference-2026-summary.md`
Source decks: `docs/diane-tran-genesis-conf-materials/`

Digest, not legal advice — verify against source regulations before live labels.